



**Bureau of Experts at the Council of Ministers
Official Translation Department**

**Statute of Services to Umrah Performers and Visitors to the Prophet's Mosque from
Outside the Kingdom**

Council of Ministers Resolution No. 93
September 20, 1999

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Statute are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Resolution No.: 93

Date: 10/6/1420H

The Council of Ministers,

Upon perusal of Casefile No. 274/8, dated 15/5/1420H, received from the Office of the Presidency of the Council of Ministers, which includes Letter No. 35S/1674, dated 15/9/1416H, of His Royal Highness the Minister of Interior regarding the draft Statute of Services to Umrah Performers and Visitors to the Prophet's Mosque from Outside the Kingdom;

Upon perusal of Article 24(2) of the Law of the Council of Ministers issued by Royal Order No. 13, dated 3/3/1414H;

Upon perusal of Shura Council Decision No. 4/5/17, dated 24/1/1417H;

Upon perusal of Minutes No. 93, dated 10/4/1418H, prepared by the Bureau of Experts and its Memorandum No. 94, dated 10/4/1418H;

Upon perusal of Shura Council Decision No. 44/59, dated 15/1/1419H;

Upon perusal of Minutes No. 112, dated 27/6/1419H, prepared by the Bureau of Experts; and

Upon perusal of Recommendation No. 240, dated 19/5/1420H, of the General Committee of the Council of Ministers;

Resolves as follows:

1. The Statute of Services to Umrah Performers and Visitors to the Prophet's Mosque from Outside the Kingdom shall be approved as per the attached form.
2. The Ministry of Interior and the Ministry of Hajj shall review this Statute in light of the observations and suggestions received during the three years following its implementation and submit any recommendation to the Council of Ministers.

Signed

Deputy Prime Minister



Statute of Services to Umrah Performers and Visitors to the Prophet's Mosque from Outside the Kingdom

Article 1

Services to Umrah performers and visitors to the Prophet's Mosque from outside the Kingdom, hereinafter referred to as “Umrah performers”, shall be provided by Saudi sole proprietorships or companies, including Al-Tawaif that serve pilgrims or any member thereof, after obtaining a commercial register in accordance with the laws and instructions without exception, and after obtaining the necessary license from the Ministry of Hajj.

Article 2

The Ministry of Hajj shall oversee licensed sole proprietorships and companies, monitor their performance, ensure they accurately fulfill their obligations and improve their employees' efficiency, and issue the necessary licenses thereto in accordance with the following:

1. The capital of the sole proprietorship or company shall be wholly owned by Saudis, and shall not be less than five hundred thousand riyals.
2. The sole proprietorship or company shall provide the Ministry of Hajj with a bank guarantee that is valid throughout the license period in the amount of two hundred thousand riyals from one of the accredited local banks; such guarantee shall be irrevocable except with the Ministry's approval in the event that the license holder ceases to engage in such services. The license shall be renewed via an application submitted by the license holder after verifying the fulfillment of all obligations thereof.
3. The license period shall be five renewable years.

Article 3

The licensed sole proprietorship or company shall comply with the following:

1. Serving Umrah performers with honesty and integrity, and performing its services in accordance with the provisions of this Statute.
2. Appointing Saudi nationals of good conduct for at least the positions of general manager, heads of branches, and service supervisors.
3. Operating an office in Makkah, Madinah, and Jeddah.



Article 4

The Kingdom's diplomatic missions shall issue visas to Umrah performers in accordance with the following:

1. The arrival of Umrah performers shall be through officially licensed entities that organize travel trips in the country from which they arrive.
2. The fulfilment of health requirements issued by the Ministry of Health.
3. Ensuring that each Umrah performer obtains a round-trip ticket and a check issued by a bank approved by the Saudi Arabian Monetary Agency, covering all dues owed to the sole proprietorship or company providing services in the Kingdom, including accommodation and transportation costs, as well as any services selected by the Umrah performer according to the agreed-upon category and the list specified in Article 5(3).
4. Sole proprietorships and companies licensed to serve Umrah performers in the Kingdom shall be bound to entities licensed abroad by a contract certified by the Ministry of Hajj and attested by the Ministry of Foreign Affairs in accordance with its rules. The Implementing Regulations shall specify the necessary details for such contract.
5. The name of the sole proprietorship or company licensed to serve Umrah performers in the Kingdom shall be specified in the visa.

Article 5

1. Sole proprietorships and companies licensed to serve Umrah performers arriving in the Kingdom through them shall comply with the following:
 - a) Receiving Umrah performers and securing their accommodation in hotels and serviced apartments classified and licensed by the Ministry of Commerce, securing their transportation and any services selected by the Umrah performer according to the agreed-upon category, supervising the provision of amenities during their stay and travel across all regions of the Kingdom, following up on their travel, confirming their reservations within the visa's specified period, and notifying the Ministry of Hajj accordingly.
 - b) Maintaining information of arrivals, including names, nationalities, tickets, passport numbers, means of transportation, date of arrival, name of the carrier and its agent, as well as the designated person responsible for each group of Umrah performers arriving by land, and any information specified in the Implementing Regulations.
2. Implementing procedures and guarantees that ensure the departure of Umrah performers and visitors from the Kingdom in accordance with the Implementing Regulations.
3. The Ministry of Hajj and the Ministry of Commerce shall, with the approval of the Minister of Interior and the Chairman of the Supreme Committee for Hajj, prepare a detailed list of service categories, including the types, levels, specifications, and prices thereof, which shall be reviewed every three years or when necessary.

Article 6

The Implementing Regulations shall clarify the appropriate arrangements that facilitate the performance of Umrah for those arriving by transit.



Article 7

1. Without prejudice to any harsher penalty stipulated in the law, the licensed sole proprietorship or company that violates any of the provisions of this Statute and its Implementing Regulations shall be subject to one or more of the following penalties:
 - a) A fine not exceeding fifty thousand riyals.
 - b) Suspension of the license for a period not exceeding six months of the Umrah visa period.
 - c) Revocation of the license granted to the sole proprietorship or company.
2. Without prejudice to the right to claim a civil right, the licensed entity abroad shall be prohibited from dealing with licensed sole proprietorships and companies in the Kingdom if it breaches its contractual obligations.
3. Any person who serves Umrah performers without obtaining the necessary license shall be subject to a fine not exceeding one hundred thousand riyals.

Article 8

A standing committee shall be formed in the Ministry of Hajj and shall comprise representatives from the Ministry of Interior, the Ministry of Commerce, and the Ministry of Hajj; one of whom shall be qualified in Sharia. Said Committee shall be tasked with receiving and investigating complaints submitted by Umrah performers or official authorities, recommending the imposition of the penalties provided for in Article 7 of this Statute, and collecting the value of unrendered services by the licensee to be returned to Umrah performers in accordance with the Implementing Regulations.

Article 9

The penalties provided for in Article 7 of this Statute shall be applied pursuant to a decision by the Minister of Hajj.

Article 10

Any person against whom a penalty decision has been issued shall have the right to appeal such decision before the Board of Grievances within 60 days from the date of notification thereof.

Article 11

The Ministry of Hajj shall collect the fines provided for in this Statute and deposit them in the State Treasury.

Article 12

Political figures shall be exempted from the conditions set in Article 4. Heads of Saudi diplomatic missions may exempt Islamic figures and figures with a special social status from all or certain conditions set in Article 4. Otherwise, exemptions shall be as determined by the Implementing Regulations.

Article 13

The Minister of Hajj shall, in agreement with the Minister of Interior, issue the Implementing Regulations of this Statute within a period not exceeding six months, including the rules governing the transportation of Umrah performers within the Kingdom.



Article 14

This Statute shall be published in the Official Gazette and shall enter into force 90 days following the date of issuance of the Implementing Regulations thereof. It shall repeal any provisions conflicting therewith.



Appendix

Amendments

September 15, 2014 (Thul-Qi'dah 20, 1435H)

Council of Ministers Resolution No. 439 provides for the following:

- Amending paragraph (2) of Article 2 to read as follows:

"The sole proprietorship or company shall provide the Ministry of Hajj with a bank guarantee that is valid throughout the license period in the amount of not less than two million riyals from one of the accredited local banks. Any amount for which the licensee is liable due to non-fulfillment of an obligation shall be directly withdrawn from the guarantee, and the licensee shall be required to immediately replenish the withdrawn amount. Such guarantee shall, in accordance with the Implementing Regulations, be irrevocable except with the Ministry's approval in the event of license termination".
- Adding a new paragraph to Article 2 to be numbered (4) which shall read as follows:

"4. Licenses for the provision of Umrah services shall be granted and renewed in accordance with criteria jointly developed by the Ministry of Interior, the Ministry of Foreign Affairs, and the Ministry of Hajj. Such criteria shall, in accordance with the Implementing Regulations, be based on financial solvency, administrative competence, prior experience in the field, overstay rates, and previous penalties".
- Adding a subparagraph to be lettered (c) to paragraph (1) of Article 5 to read as follows:

"(c) Paying the cost of the return ticket of any Umrah performer who arrived through them and failed to depart on his scheduled departure date, or such amount shall be deducted from the bank guarantee upon his arrest by security agencies or upon his deportation".
- Adding a new paragraph to Article 5 to be numbered (4) to read as follows:

"4. A company shall, through a public tender, be selected to sort the travel documents of Umrah performers and organize the necessary arrangements for them to facilitate the task of receiving and seeing them off by Umrah companies and sole proprietorships at ports of entry. The Ministry of Hajj shall, in coordination with the Ministry of Interior, the Ministry of Foreign Affairs, and the Ministry of Finance (General Customs Authority), set the conditions and controls necessary therefor, provided that the selected company receives a specified amount, borne by the licensed Umrah companies and sole proprietorships, as determined by the tender results".
- Amending Article 13 to read as follows:

"The Minister of Hajj shall, in agreement with the Minister of Interior and the Minister of Foreign Affairs, and in coordination with the Saudi Commission for Tourism and Antiquities, issue the necessary amendments to the Implementing Regulations of this Statute within a period not exceeding six months, including the rules governing the transportation of Umrah performers within the Kingdom".



August 31, 2015 (Thul-Qi'dah 16, 1436H)

Council of Ministers Resolution No. 494 provides for the following:

- Adding a new paragraph to be numbered (4) to Article 7 to read as follows:
"4. The penalty decision may include a provision to publish its summary at the violator's expense in a local newspaper published in the violator's area of residence, or if none is available, in the nearest area, or through any other appropriate medium, or through both; according to the type, gravity, and impact of the violation committed. Such publication shall only be made after the decision becomes final due to the lapse of the statutory period or upon being affirmed by the competent court".